HCC22/26
CASE No: HCCC195/26

GOVINE INVESTMENTS (PVT) LTD

VERSUS

ANDREW TAPERA

HIGH COURT OF ZIMBABWE
MUZOFA J
CHINHOYI,18 June 2026

Urgent Chamber Application

J. Mawere, for the Applicant
T.A Mandizvidza, for the Respondent

MUZOFA J.

1. A company, such as the applicant, is an artificial person, a creature of the statute. It cannot speak for itself. It is represented by its board of directors, who speak through a board resolution. When a company litigates, the deponent to its affidavit must show that he was authorized to do so by the legitimate board of directors.
2. There is plenty of authority that confirms the position that such a deponent requires a board resolution. See *Madzivire & Ors V Zvarivadza & Ors* 2006 (1) ZLR 514 (S*) Dube v Premier Service Medical Aid Society & Anor* SC 73/19. So trite is the position that Richard Kwenda 'hereinafter referred to as 'Richard,' who deposed to the applicant's affidavit, did attach a board resolution authorizing him to depose to the affidavit in this application. The only issue is whether the board members were legitimate members.

3. The board resolution must be signed by legitimate members. Where the legitimacy of those who signed is challenged, the onus is on the deponent to establish otherwise.

4. In this application, the two main shareholders in the applicant are at the center of the dispute. The form CR14 filed by the respondent shows that as at 15 January 2020 the applicant's directors were Richard and Andrew Tapera ''Andrew". As is apparent, Richard purports to represent the applicant, and Andrew is the respondent. One Douglas Matanga 'Douglas' resigned on the 15th of January 2020, and Sekai Mukucha ''Sekai" is cited as the secretary.

5. Richard deposed to an affidavit, very much aware of the need for authorization. He relied on a board resolution signed by Douglas and Sekai, witnessed by their lawyer, Mr Matare. The resolution authorized Richard to represent the applicant in the matter between the applicant and Andrew, the respondent.

6. Richard, representing the applicant, swore positively to how the respondent despoiled the applicant and, in the process, sought interdictory relief. I need not delve into the substantive facts as they are unnecessary in the resolution of the matter.

7. The difficulty that saddled Richard was how to proceed in the event of a shareholder dispute. This was a matter for proper legal advice. It is competent to litigate without resorting to what transpired in this case.

8. The respondent opposed the application and took a preliminary point that there was no authority to institute proceedings. The person who allegedly signed the board resolution was not and is not a board member of the applicant. He resigned. To buttress the submission, the applicant's Form CR14 was attached.

9. On the date of the hearing, *Mr. Mawere,* for the applicant, tried to sanitize the board resolution and literally gave evidence from the bar, which is irregular. He alleged that the form CR14 filed by the respondent is a fraudulent document. Further, that Douglas was a true shareholder but was prevailed upon. He did not have evidence to prove that Douglas was prevailed upon to change his stance. When the court took him at his word for verification with the registry of companies, he recanted his submission. It therefore stood that the form CR14 filed of record is authentic.

10. What transpired in this case is truly disconcerting. It is no secret that disputes can arise among shareholders, which can tear the company apart. There are legitimate ways to litigate and resolve disputes through the legal system. It becomes worrisome if one of the shareholders seeks to hoodwink the court to obtain an order against the other shareholder.

11. The evidence placed before the court is irresistible. The paper trail filed by the respondent admits of no doubt that Douglas had resigned as a board member as at 4 June 2026 when he allegedly authorized Richard to litigate on behalf of the applicant. There are two possibilities: either he signed, or Richard forged his signature.

12. Douglas filed an affidavit disassociating himself with the resolution filed. He also tendered a copy of his driver's license to demonstrate that the signature on the resolution was not

his. The only inference is that Richard may have obtained the resolution inappropriately, possibly fraudulently. There is no proof that the applicant is litigating. The matter suffers a still birth.

13. The respondent sought costs on a higher scale against Richard on the basis that he approached the court on an urgent basis using a fraudulent board resolution. I have no doubt that Richard was fully aware that Douglas resigned.

14. The form CR14, wherein Douglas is shown as resigned, was filed by Richard. It is shown as filed by Richard Kwenda of 152 Sylvia Chunga Road, Westwood, Harare. This was not disputed. It is trite that what is not disputed is taken as admitted. Richard's conduct in approaching the court using Douglas' name is an abuse of court process. I am inclined to follow the reasoning in the following cases where punitive costs were granted, in *Mapfumo v PSMI (Pvt) Ltd* HH145/09 the applicant misrepresented facts on which he premised his application, in *Chinyemba v Majawala* HH106/09 the plaintiff's case was based on a total fabrication, in *Strong (Pvt) Ltd v Wachenuka* HH44/10 the applicant had filed numerous applications in defiance of extant court orders.

15. Where a litigant's conduct is to hoodwink the court to grant an order, the court must mark its displeasure through an order of punitive costs. The applicant deliberately misrepresented facts on which he premised his application. Even when the fallacy was pointed out, he did not, as was expected, give up. He instead persisted in what must have been an apparently hopeless application.

Disposition

16. The deponent to the applicant's founding affidavit was not validly authorized to institute the proceedings. The board resolution filed by the applicant was fraudulently obtained. It was signed by a board member who resigned in 2020.

17. As a result, to mark its displeasure, the court will grant punitive costs against Richard, who filed the application well aware that the board resolution was a lie.

18. Accordingly, the application is struck off the roll with costs on a higher scale against Richard Kwenda.

Gumbo and Associates applicants' Legal Practitioners

Masiya – Sheshe and Associates' respondent's Legal practitioner